



August 30, 2024

California Fish and Game Commission  
P.O. Box 944209  
Sacramento, CA 94244-2090

RE: Petition and Department Evaluation for Listing of Western Burrowing Owl

Ladies and Gentlemen:

Ventura Audubon Society strongly supports the proposed listing of certain populations of Western Burrowing Owl as a threatened or endangered species. Here, as elsewhere, the continued loss of undeveloped open space threatens many bird species and other creatures.

Having accepted the petition, we urge that the appropriate studies to determine status be conducted expeditiously.

Sincerely,

Rachel Ameche  
President  
Ventura Audubon Society  
[president@venturaaudubon.org](mailto:president@venturaaudubon.org)

Tax ID# 95-3538623



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USA



*California Fish and Game Commission*  
*P.O. Box 944209*  
*Sacramento, CA 94244-2090*

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**From:** Regina Green [REDACTED]  
**Sent:** Tuesday, September 17, 2024 1:15 PM  
**To:** FGC  
**Subject:** October 9-10 session: burrowing owls

Dear Members of the California Fish and Game Commission,

I hope this message finds you well. In anticipation of the meeting in October where the subject of burrowing owl populations will be addressed, I am writing to express my concern regarding the current status of the burrowing owl populations in California and to request that immediate measures be taken to protect this vulnerable species.

The burrowing owl plays a crucial role in our ecosystem, and its population continues to face significant threats due to habitat loss, predation, and other environmental pressures. I believe it is critical to act now to ensure the long-term survival of these owls and to restore their populations to a healthy and sustainable level.

To this end, I respectfully request that the Commission consider reinstating full-time biologists to actively oversee the burrowing owl restoration project. These dedicated professionals are essential in ensuring that the owls' habitats are protected and that restoration efforts are guided by sound scientific principles. The presence of full-time biologists will not only improve the monitoring and protection of the owls but also provide valuable insights into adaptive management strategies that can be implemented to mitigate ongoing threats.

By restoring the full-time biologists to active duty, we can ensure that the necessary expertise and resources are available to address the challenges the burrowing owls face. This action will greatly contribute to maintaining biodiversity and promoting the long-term success of conservation efforts for this species.

Thank you for your attention to this urgent matter. I am confident that the California Fish and Game Commission shares a commitment to preserving our state's wildlife, and I look forward to your favorable consideration of this request.

Sincerely,

Regina Green

**From:** Yvonne Baginski [REDACTED]  
**Sent:** Wednesday, September 25, 2024 3:53 PM  
**To:** FGC  
**Subject:** Listing Burrowing Owl as Endangered

I am writing in hopes that the Western Burrowing Owl be listed as endangered in Shoreline areas of California.

I live in Napa County, and our shoreline is along the Napa River and the San Francisco Bay Estuary along the border of American Canyon. Currently, we are seeing an uptick of warehouse development in the flatlands of American Canyon, where almost every square inch of land is destined for grading and being paved over for truck traffic. This area, which at one time was noted for its biological diversity, has seen a significant drop in wildlife, including a steep decline in ground squirrels, which we know provide possible habitats for burrowing owls. As the land gets graded, scraped and made into parking lots, warehouses and off-loading areas, we have no criteria for protecting the wildlife, any of it, unless it's listed endangered or threatened. If it just "disappears" from the area, there is no recourse.

Protections need to be in place before the animals are totally gone, or extinct, from a region.

When the Environmental Impact Reports are developed for the south Napa County American Canyon area, the biologists claim that no animals of significance are found in the region. They point out in the EIR's that the only birds in these lands are crows, scrub jays and the occasional hawk. The annihilation of wildlife is well noted, in these developer-purchased reports, but not necessarily true. Our local citizen scientists walk these areas monthly and note numerous birds not seen or noted on the day of the biologist visits.

So, we aren't sure whether or not there are Burrowing Owls in these regions. Just because they aren't seen (and often these are private lands), doesn't mean they don't exist. And, of course, if they're listed as endangered, there'd be incentives to protect these areas for habitat.

Please protect the Burrowing Owl, and all wildlife so that we can enjoy the little we have left.

Thank you,  
Yvonne Baginski

**From:** [REDACTED]  
**Sent:** Thursday, September 26, 2024 12:35 PM  
**To:** FGC  
**Subject:** Oct 10 Agenda Item 14: Western Burrowing Owl Endangered Species Warranted Vote

Dear California Fish and Game Commission:

I urge you to vote that listing the Western Burrowing Owl as an endangered species statewide may be warranted. Your affirmative vote is the single most important positive tipping point needed to pivot the owl's trajectory from extinction to survival. At minimum, five imperiled burrowing owl populations (San Francisco Bay Area, Central-Western California, Southwestern California, Central Valley, and Southern Desert Range) must be designated as candidate species under the California Endangered Species Act and protected.

Without your affirmative vote, burrowing owls are certain to continue careening to local extirpation, then extinction. Losing any near-apex predator risks unrecoverable unstable consequences to the owl's prey populations and the interdependent ecosystems surrounding them. Burrowing owls play a crucial role in controlling populations of insects and small mammals, critical to abundant, healthy, and diverse wildlife that thrives within dynamic ecosystems, including urban ones.

San Francisco Bay Area's Santa Clara County burrowing owls eat gophers, mice, voles, grasshoppers, praying mantis, earwigs, and beetles. Burrowing owls provide garden, farm, golf course, and agricultural pest control. Burrowing owl loss will impact anyone with a garden or growing food at any scale. Loss of burrowing owls will lead to varying out of control pest populations, with further chemical pest control washing into waterways and harming fish.

The San Francisco Bay Area population, in particular, urgently depends on your action. In June 2024, Santa Clara County's largest burrowing owl population was in Mountain View's Shoreline Park. The breeding pair success there demonstrated measurable effective results of the city's Burrowing Owl Preservation Plan written and implemented by city-employed biologists. Additionally, I have planted hundreds of native plants at the Shoreline Park's burrowing owl habitat, to increase insect biodiversity for the owls. I and other volunteers help care for thousands of native plants planted for the owls, and helping all wildlife. From a safe distance, we see the owls looking at us, we love hearing how many chicks were raised – each one is precious. We know from the biologists that the owls hunt in our native planting areas for insects and rodents, and the owls especially love the little green beetles! We were so happy and proud of the larger number of chicks raised this year compared to previous years, and our hearts were full of hope.

However, in July, both biologists were abruptly ejected from Shoreline during burrowing owl breeding season. Burrowing owls raising their chicks in predator protection cages, monitored and fed by biologists, were suddenly without their caretakers. Hungry caged owls were unable to adequately feed their young. Think about what went on inside those cages. Think about the smallest birds. By the time the owls were rescued from Shoreline, all were underweight and one chick was dead. The Shoreline-experienced biologists' absence continues with no end in sight.

This act of animal cruelty highlights that burrowing owls must be protected from harm by humans, and that humans or organizations harming burrowing owls must be deterred, held accountable, and receive legal consequences.

Sadly, attempted silencing and disappearing of biologists isn't original to Mountain View. Please right the FGC wrong done with 2003's unanimously rejected burrowing owl petition, which also leveraged silencing the CA Fish and Game biologist. There are no more chances, burrowing owls are out of time.

Response to Land Use Concerns:

Concern - But, with CESA protections, development would be impacted by regulations, restrictions, and additional required studies.

Response - Yes, communication, collaboration, and coordination with stakeholders is a normal part of development, even out here in the wild west.

Development organizations and their contractors, consultants, and attorneys operating in the world's 5th largest economy are not entitled to accelerate the earth's 6th mass extinction event to maximize profits at the expense of all else. This month, the California Legislature demonstrated leadership by passing the nation's first bill holding textile producers responsible for recovering their waste clothing and textiles (SB 707), and with California Attorney General Bonta suing Exxon Mobil, both demonstrate a willingness to hold large waste and harm originators responsible. I wonder if their, your, and my future descendants might like to be able to see native burrowing owls in the wild in California - or just photos.

FGC Commissioners, please be thoughtful, bold, and visionary by breaking the old playbook. Show us all that these little owls are certain to be protected by big people who have big hearts and strong spines. Please don't allow burrowing owls to slide out of existence on your watch.

Thank you for your hard work, service, and willingness to make tough decisions.

G. Stevens  
SF Bay Area

**From:** [REDACTED]  
**Sent:** Wednesday, September 25, 2024 1:37 PM  
**To:** FGC  
**Subject:** Please support the listing of Burrowing Owls under CESA

Dear Commissioners,

We are writing to request that you designate five imperiled burrowing owl populations (San Francisco Bay Area, Central-Western California, Southwestern California, Central Valley, and Southern Desert Range) as candidate species under the California Endangered Species Act.

Candidate status for these declining owl populations will allow the CA Department of Fish & Wildlife to conduct a full status review of the species and make an informed recommendation to the Commission about whether to designate imperiled populations as threatened or endangered species.

Burrowing owls were once widespread throughout California but have suffered significant habitat loss due to conversion of grasslands to sprawl development and eradication of ground squirrels. They have been eliminated as a breeding species or are near extirpation in nearly one-third of their former range in California.

Statewide surveys showed a 60% decline in California's burrowing owl colonies from the 1980s to the early 1990s, and a further 11% decline in breeding pairs by 2007. Loss of breeding colonies has accelerated since 2015. Outside of the Imperial Valley, only 2,500 or fewer breeding pairs of burrowing owls remain in the state.

We are on a trajectory to lose breeding burrowing owl populations entirely from the San Francisco Bay Area, Central Coast, and Southwestern California; breeding owls are also rapidly declining in the Central Valley and southern desert regions. The relatively large burrowing owl population in the Imperial Valley does not serve as a dispersal source to augment isolated or depleted owl populations elsewhere in the state. Extensive data from banded burrowing owls shows very little evidence of movements of resident owls between regional populations in California.

Since they can live in the margins of infrastructure and agriculture, burrowing owls are often considered to be adaptable. But they have very specific habitat requirements, including burrows excavated by ground squirrels; grasslands or arid environments with short, sparse vegetation; adequate foraging habitat with abundant and available prey; and opportunities for wintering and dispersal.

Large burrowing owl colonies on private lands are not being protected, and habitat requirements are not being met even on many public lands, which is why state listing is needed.

Sincerely,

Lisa Owens Viani  
Director  
Raptors Are The Solution  
A Project of Earth Island Institute  
2150 Allston Way, Suite 460  
Berkeley, CA 94704  
(510) 292-5095  
[raptorsarethesolution.org](http://raptorsarethesolution.org)

**From:** Barbara and Sal Salerno [REDACTED]  
**Sent:** Thursday, September 26, 2024 9:00 AM  
**To:** FGC  
**Subject:** PROTECT BURROWING OWLS

## PROVIDE PROTECTIONS FOR THE WESTERN BURROWING OWL IN CALIFORNIA

Stanislaus Audubon Society was pleased to hear that the California Fish and Game Commission is taking a vote on “candidate” status for the Burrowing Owl as a State Threatened or Endangered Species under the California Endangered Species Act. None of our Board of Directors members can attend the October 10 meeting in Sacramento, but we would like to offer this input in support of your upcoming vote.

The chief threat to the grasslands habitat of the Burrowing Owl lies in the increasing conversion of grazing lands into vast areas of corporate almond orchards. As of 2024, there are 210,000 acres of almond orchards in Stanislaus County, nearly one-fifth of the total acreage of that crop in California. That alarming figure does not take into account the almond orchard acreage in other counties of the San Joaquin Valley. Burrowing Owl habitat is further reduced by pistachio and walnut orchards, as well as grape vineyards. This overall agricultural development, which has a near permanent effect on the grasslands, has had a negative impact on the populations of Burrowing Owls. This keystone species has declined as a direct result of the loss of the open fields they need for nesting burrows and for capturing prey.

Our Audubon chapter, which covers Stanislaus and Merced Counties, is in full support of the California Fish and Game Commission’s vote to place the Burrowing Owl in a state protected status. Let’s act to preserve and protect this intriguing owl species!

Salvatore Salerno, president

Stanislaus Audubon Society

September 26, 2024

**From:** Suzanne C. Thompson [REDACTED]  
**Sent:** Thursday, September 26, 2024 9:33 AM  
**To:** FGC  
**Subject:** Comments for 10/10 meeting: CESA Listing for Burrowing Owl

To: The California Fish and Game Commission

From: Suzanne Thompson, Chair of the Pomona Valley Audubon Society (PVAS) Burrowing Owl Project [REDACTED]

The PVAS Burrowing Owl Project has worked for seven years to protect Burrowing Owls (BUOWs) in the Pomona Valley in southern California. Hundreds of volunteers have monitored the owls, installed artificial burrows, worked to improve owl habitat, to reduce rodenticide use near BUOW sites, and to engage the public in BUOW protection. Some of our efforts have been successful but due to unchecked land development, the number of BUOWs and suitable habitat for them has plummeted.

BUOWs were once numerous in southern California but it is clear that they are now facing extirpation. They desperately need protection from further habitat loss and the ravages of rodenticides. The CA Fish and Game Commission is their last hope. Please act to provide that protection through CESA state listing.

September 26, 2024

**VIA E-MAIL**

Members of the California Fish and Game Commission  
P.O. Box 94209  
Sacramento, CA 94244-2090

Re: Western Burrowing Owl Listing Petition (Agenda Item 14, October 10 Meeting)

Dear Honorable Members:

On behalf of the California Building Industry Association (“CBIA”), we hereby submit these comments on the proposed listing of Western burrowing owl (“BUOW”) as a threatened or endangered species under the California Endangered Species Act (“CESA”). We appreciate the opportunity to provide our views.

CBIA is a statewide non-profit trade association representing homebuilders, architects, trade contractors, engineers, designers, and other building industry professionals. CBIA and its members are dedicated to the planning and provision of much-needed housing for Californians at all levels of affordability and accessibility. Collectively, CBIA’s members employ approximately 100,000 people and are responsible for providing approximately 80 percent of all new homes produced annually in California. CBIA is comprised of approximately 3,000 members involved in all aspects of planning, permitting, and constructing homes throughout California.

CBIA and its members play a leading role in efforts to address the critical housing shortage confronting California. As recently expressed by the California Legislature:

*California has a housing supply and affordability crisis of historic proportions. The consequences of failing to effectively and aggressively confront this crisis are hurting millions of Californians, robbing future generations of the chance to call California home, stifling economic opportunities for workers and businesses, worsening poverty and homelessness, and undermining the state’s environmental and climate objectives.*

Cal. Gov’t Code section 65589.5.

Despite this crisis, the homebuilding industry faces a quickly accelerating pace of CESA candidacy determinations and listings that threaten to undermine the State’s efforts to produce sufficient housing for all income categories. The industry has already been greatly challenged by the Commission’s recent actions on a variety of species, including Western Joshua tree, Crotch

bumblebee, mountain lion and steelhead. The addition of yet another candidate species, particularly one which already receives substantial protection under California law, would add unnecessarily to this regulatory burden.

A “may be warranted” finding by the Fish and Game Commission (“Commission”) carries with it significant legal consequences under CESA Section 2085 which, with one notable exception, applies CESA’s take prohibition to all candidate species. This broad prohibition becomes effective based merely upon a finding that an objective, reasonable person would conclude that there is a substantial possibility that the requested listing might occur. *Natural Resource Defense Council v. Cal. Fish and Game Com.* (1994) 28 Cal.App.4<sup>th</sup> 1104. If the potential for listing based almost solely upon a submitted petition is anything more than *insubstantial*, then the Commission must find that listing is warranted *regardless* of whether there is contrary evidence in the record. All that is required is a *prima facie* showing of the possible need for listing. *Center for Biological Diversity v. California Fish and Game Commission* (2008) 166 Cal.App.4<sup>th</sup> 597. The legal consequences of such a finding under Section 2085, at this early stage of the listing process, are thus often highly disproportionate to the weight of the evidence supporting the listing itself.

Given the blunt nature of the regulatory instrument found in Section 2085, in our view it is incumbent on the Commission, and the Department of Fish and Wildlife (the “Department”), to identify means by which any threat to BUOW can be addressed in a more considered manner *prior* to the establishment of yet another statewide take prohibition.

As acknowledged in the listing petition for BUOW (the “Listing Petition”), this species already receives substantial protections under California law. These regulatory protections include the California Environmental Quality Act, which for decades has routinely been used to identify specifically, and mitigate, impacts on BUOW across the State in accordance with relatively uniform guidance from the Department. They also include the formidable statutory protections found in (i) Fish and Game Code Sections 3503 (relative to the nests and eggs of any bird), 3503.5 (with respect to birds-of-prey or their nests and eggs) and 3513 (relative to birds protected under the Migratory Bird Treaty Act), which already prohibit take of BUOW and do not provide any permitting relief whatsoever, and (ii) the Department’s protections of BUOW through the Lake and Streambed Alteration program under Section 1602 of the Fish and Game Code. Moreover, as articulated in the Listing Petition, the many established NCCPs and HCPs approved in California offer comprehensive protections for BUOW, as do numerous conservation banks, permittee-responsible mitigation projects, and resource management strategies for publicly-owned lands.

Notably, the Listing Petition goes to great lengths to dismiss the efficacy of these existing protections. If these other regulatory tools are indeed as ineffective as characterized by the petitioners in the Listing Petition, one wonders why they believe the listing of BUOW would add anything new, different or more efficacious. Unfortunately, the Department itself has not yet provided its own views on the adequacy of the existing regulatory regime. Until these questions

can be considered by the Commission based upon a more balanced record, we believe the elevation of BUOW to candidate status to be premature and the record to be inadequate to make even the *prima facie* showing required under CESA.

In light of the foregoing, we recommend that the Commission refrain from elevating BUOW to candidacy until the record can be more fully developed and rational alternatives to listing can be investigated, identified and put into place. This can be accomplished under CESA Section 2074.2, which allows the Commission to defer a candidacy determination if it finds that further information relevant to the species would assist in determining whether the petitioned action may be warranted.

In our view, such informational requirements might include:

- A balanced evaluation by the Department of the efficacy of existing NCCPs and the other regulatory vehicles described above. Petitioners' wholesale dismissal of existing regulatory protections is clearly biased, one-sided, anecdotal and not particularly scientific. Absent any substantive and considered response from the Department, we do not have a reliable record on this question.
- An evaluation of whether the recommendations set forth in the Department's *Staff Report on Burrowing Owl Mitigation* (March 7, 2012) (the "BUOW Staff Report") can be used to address BUOW-related challenges in advance of any listing decision. By way of example, these recommendations include (i) the development and implementation of a statewide conservation strategy for BUOW, including the development and implementation of a statewide BUOW survey<sup>1</sup> and monitoring plan; and (ii) the development of more rigorous BUOW survey methods; clear and effective avoidance and minimization measures; and mitigation measures to ensure impacts to the species are effectively addressed at the project, local, and/or regional level. It has been more than 12 years since the BUOW Staff Report was issued but, to our knowledge, no considered attempt to implement many of the recommendations set forth in that report has taken place.
- An evaluation of whether additional management actions (i.e., beyond those included in the BUOW Staff Report) might be put into place as an alternative to candidacy or listing. Notably, the Listing Petition identifies fifteen (15) "Recommended Management and Recovery Actions" for BUOW, only one of which involves the listing of the species. The other 14 strategies recommended in the Listing Petition, regardless of their merit, can actually be accomplished *without* the actual listing of the species. Although we do not endorse all of these

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<sup>1</sup> We note that the Listing Petition itself calls for a state-wide survey of the breeding BUOW range throughout the State which, in our view, is a significant concession that the scientific record is lacking. As noted in the Listing Petition, the last comprehensive survey was conducted in 2006-2007, only shortly after the Commission's decision to decline the listing of BUOW. Without such updated survey work, we believe the Listing Petition to be defective.

recommended actions, they ought to be considered in a thoughtful manner to determine whether BUOW recovery might be accomplished outside of the listing process.

- An evaluation of the Department's constrained ability to manage timely permit processes for existing candidate and listed species, in addition to BUOW, through incidental take permits under CESA Section 2081 and Lake and Streambed Alteration Agreements ("LSAAs") under Section 1602 of the Fish and Game Code. The Department's implementation of these permit programs is already seriously compromised by (i) the multitude of recent listings and candidacies under CESA and (ii) the Department's expansion of its LSAA program in recent years (i.e., under the MESA and Dryland Watershed reports), including the Department's insistence that it has no means of making "jurisdictional determinations" absent receipt of notifications under Section 1602.
- An evaluation of whether programmatic permit processes might be developed -- outside of the NCCP context -- to provide expedited and standardized permitting relief for the regulated community if the BUOW were to be listed. During any candidacy period for BUOW, this would include the use of CESA Section 2084 to the extent BUOW receives take protection under Section 2085 of CESA. But it might also include the development of programmatic permit processes under Section 2081 that could be implemented on a post-listing basis, which to date the Department has been reluctant to undertake. We believe this can be accomplished based upon the Department's existing regulatory authority and without the need for new legislation.
- A more thorough substantive evaluation of the listing petition by the Department than is afforded under the normal petition evaluation process. The Department's petition evaluation evaluates only whether the Listing Petition contains sufficient information to support candidacy based upon the low legal threshold described above. But it does not evaluate the *quality* of the evidence cited in the Listing Petition, particularly the petitioners' summary dismissal of the efficacy of existing regulatory mechanisms. Thus, before the Commission takes the highly consequential step of imposing a new permitting regime for BUOW, we recommend that at least some elements of the Department's more formal, substantive review occur prior to candidacy.
- Specific areas requiring further evaluation would include, at a minimum, (i) a substantive evaluation of the petitioners' claim that the various BUOW populations may warrant distinct listings as threatened or endangered evolutionary significant units ("ESUs"); (ii) an evaluation of whether areas that are subject to approved NCCPs or other regulatory protections should be excluded from any listing; (iii) an evaluation of whether the different subpopulations should

be listed at different levels of protection or uniformly as threatened; and (iv) an evaluation of other data gaps in the Listing Petition in light of the acknowledgment by both the petitioners and the Department that the degree of connectivity among populations of California BUOW remains unknown and petitioners' acknowledgment that a comprehensive survey of breeding BUOW be conducted in light of the age of prior studies (i.e., 2006-07). Given the significant regulatory consequences of candidacy, from both a legal and policy perspective the Commission would do well to secure a thorough evaluation of the science underlying the Listing Petition itself.

In our view, a candidacy determination by the Commission, without further investigation, would be premature. We therefore encourage the Commission to defer its determination under Section 2074.2(c)(2) until such time as a more fulsome scientific record, and a more thoughtful scientific and regulatory approach as described above, can be developed and considered. If the Commission is unwilling to rely upon Section 2074.2(c)(2) for this purpose, then the Commission should simply find that the Listing Petition does not contain the information required to conclude that listing may be warranted.

Finally, given the profound consequences of candidacy to landowners around the State, the Commission should take steps to address the obvious due process concerns. If, as we suspect, the provision of individual notice to landowners under Section 2074.4 cannot practicably be accomplished due to the "widespread, fragmented or complex nature of ownership" of lands which "may provide habitat essential to the continued existence of the species," then the provisions of Section 2085 should not apply to BUOW if the Commission determines that listing may in fact be warranted. The Commission's normal notification process does not satisfy the requirements of Section 2074.4.

Thank you for your consideration of these comments.

Sincerely,

Cox, Castle & Nicholson LLP



Clark Morrison

RCM

Cc: Charlton Bonham (CDFW)  
Dan Dunmoyer (CBIA)  
Nick Cammarota (CBIA)  
Cliff Moriyama



**California Council for Environmental and Economic Balance**

369 Pine Street, Suite 720, San Francisco, CA 94104  
(415) 512-7890 | [cceeb.org](http://cceeb.org)

September 26, 2024

Honorable Samantha Murray  
President  
California Fish and Game Commission  
P.O. Box 944209  
Sacramento, CA 94244-2090

Sent via email to: [fgc@fgc.ca.gov](mailto:fgc@fgc.ca.gov)

Re: CA Fish and Game Commission October 10, 2024, Meeting Agenda Item #14  
Western burrowing owl - Consider and potentially act on the petition, Department's  
evaluation report, and comments received to determine whether listing western  
burrowing owl (*Athene cunicularia hypugaea*) as threatened under the California  
Endangered Species Act may be warranted.

Action Requested: Postpone Decision

Dear President Murray:

The California Council for Environmental and Economic Balance (CCEEB) appreciates the opportunity to comment on the petition to list the Western burrowing owl and the determination by the California Fish and Game Commission (Commission) as to whether or not the petitioned action may be warranted.

CCEEB is a non-profit, non-partisan association of business, labor, and public leaders, which advances balanced policies for a healthy environment and strong economy. After reviewing the petition and the Petition Evaluation for Western Burrowing Owl prepared by the California Department of Fish and Wildlife (Department), we would respectfully request that the Commission postpone action on the petition and any determination that the petitioned action may be warranted throughout its entire range.

CCEEB is committed to assisting California achieve its energy and climate goals. However, in order to achieve those goals, California will first have to develop the necessary infrastructure and energy projects (large and small) in an environmentally and efficient manner. We are concerned that a "may be warranted" determination regarding the petition that is based on insufficient scientific data will severely affect California's ability to achieve its energy and climate goals.

The Department's petition evaluation report highlights the fact that the petition does not request that the Commission list the Northern Desert or the Coachella and Imperial Valley populations under CESA. It goes on to state that if the Commission determines listing the entire Central Valley population as threatened is not warranted, the petitioners request that the Commission evaluate whether the western burrowing owls in the Northern Central Valley, Middle Central Valley, and Southern Central Valley regions constitute distinct populations and whether listing any of these populations is warranted under CESA. Finally, the Department's petition evaluation report states that if the Commission determines that listing the entire Southern Desert Range population as threatened is not warranted, the petitioners also request that the Commission evaluate whether the western burrowing owls in the Western Mojave, Eastern Mojave, and Sonoran Desert regions constitute distinct populations and whether listing any of these populations is warranted under CESA. So, what exactly is under consideration by the Commission – all, some, none of distinct populations, ESA, statewide?

CCEEB believes that the requests made by the petitioners highlight the lack of scientific information that should be included in the petition to enable the Commission to make a "may be warranted" determination – not after the fact. To that end, the petition continues to rely on two surveys that were used the last time a petition to list the Western burrowing owl was submitted for consideration by the Commission. At that time, the Commission found that the petition provided insufficient evidence to indicate that the petitioned action may be warranted. We believe that if the same survey information used in the 2004 petition is the predominant information used as the basis for the 2024 petition, we believe that additional scientific information regarding populations of western burrowing owl in evolutionary significant units (ESUs) and distinct populations identified in the petition should be included in the petition prior to a "may be warranted" decision by the Commission.

CCEEB would also like to point out that in 2012 the Department published a Staff Report on Burrowing Owl Mitigation. In that report, the Department stated:

"The Department recognized the need for a comprehensive conservation and mitigation strategy for burrowing owls, and in 1995 directed staff to prepare a report describing mitigation and survey recommendations. This report, "1995 Staff Report on Burrowing Owl Mitigation," (Staff Report) (CDFG 1995), contained Department-recommended burrowing owl and burrow survey techniques and mitigation measures intended to offset the loss of habitat and slow or reverse further decline of this species. Notwithstanding these measures, over the past 15+ years, burrowing owls have continued to decline in portions of their range (DeSante et al. 2007, Wilkerson and Siegel, 2010). The Department has determined that reversing declining population and range trends for burrowing owls will require implementation of more effective conservation actions, and evaluating the efficacy of the Department's existing recommended avoidance, minimization and mitigation approaches for burrowing owls.

The Department has identified three main actions that together will facilitate a more viable, coordinated, and concerted approach to conservation and mitigation for burrowing owls in California. These include:

1. Incorporating burrowing owl comprehensive conservation strategies into landscape-based planning efforts such as Natural Community Conservation Plans (NCCPs) and multi-species Habitat Conservation Plans (HCPs) that specifically address burrowing owls.
2. Developing and implementing a statewide conservation strategy (Burkett and Johnson, 2007) and local or regional conservation strategies for burrowing owls, including the development and implementation of a statewide burrowing owl survey and monitoring plan.
3. Developing more rigorous burrowing owl survey methods, working to improve the adequacy of impacts assessments; developing clear and effective avoidance and minimization measures; and developing mitigation measures to ensure impacts to the species are effectively addressed at the project, local, and/or regional level (the focus of this document).

CCEEB believes that before consideration of the petition, the Department should provide an update to its 2012 Staff Report on Burrowing Owl Mitigation so that the Commission and the public can determine if issues like incorporating burrowing owl comprehensive conservation strategies into landscape-based planning efforts such as Natural Community Conservation Plans (NCCPs) and multi-species Habitat Conservation Plans (HCPs) that specifically address burrowing owls have not been effective as stated in the petition. Clarification of this issue is important since numerous HCPs/NCCPs have incorporated western burrowing mitigation measures, and the Department has determined that those plans will not cause jeopardy to the species.

Recommendations contained in the petition seemingly support the need for clarity surrounding the benefits generated for the species by the adoption of HCPs/NCCPs and the mitigation and survey protocols adopted in 2012 as part of the Department's Staff Report. The petition recommends that the Department's 2012 survey and mitigation guidelines be required instead of voluntary and implemented for HCPs. To the best of our knowledge, those HCPs/NCCPs within the range of the western burrowing owl include such survey and mitigation measures. And, to that end, CEQA documents also include related survey and mitigation measures for the species since it is currently a species of special concern. The petition also recommends that the 2012 guidelines related to survey methods be based on more recent research. We believe this recommendation reinforces the need to postpone action on the petition until such recommendations can be implemented.

Until appropriate updates of information and effectiveness of mitigation measures can be properly analyzed as part of the petition and a clear understanding of scale and scope of the petition as it relates to listing the entire statewide population, one or several ESUs, and/or one or several distinct populations, we urge the Commission to table consideration of the petition at this time.

Please contact Jack Gualco or Cliff Moriyama with any questions or comments regarding this matter at (916) 441-1392 or [tgg@gualcogroup.com](mailto:tgg@gualcogroup.com)

Sincerely,

A handwritten signature in black ink that reads "Tim Carmichael". The signature is fluid and cursive, with the first name "Tim" and last name "Carmichael" clearly distinguishable.

TIM CARMICHAEL  
President/CEO

cc: Hon. Erika Zavaleta, Vice President  
Hon. Jacque Hostler-Carmesin, Member  
Hon. Eric Sklar, Member  
Hon. Darius Anderson, Member  
Hon. Charlton H. Bonham, Director, CA Department of Fish and Wildlife  
The Gualco Group, Inc.



Catherine H. Reheis-Boyd  
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California Fish and Game Commission  
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Submitted via email to [fgc@fgc.ca.gov](mailto:fgc@fgc.ca.gov)

## Agenda Item 14, Western Burrowing Owl Petition to List

Dear Commissioners:

The Western States Petroleum Association (WSPA) submits these comments on Item 14, Western Burrowing Owl Petition to List, on the agenda for the October 9-10, 2024 meeting of the Fish and Game Commission (Commission). WSPA urges the Commission to find that there is insufficient scientific information to indicate that listing the Western burrowing owl (*Athene cunicularia hypugaea*) as threatened or endangered under the California Endangered Species Act (CESA) may be warranted, decline to identify the owl as a candidate for listing, and reject the petition to list submitted by the Center for Biological Diversity and other organizations on March 5, 2024 (Petition).

WSPA is a non-profit trade association representing companies that explore for, produce, refine, transport and market petroleum, petroleum products, natural gas, and other energy supplies in California and four other western states. WSPA members own and operate facilities in California oilfields that provide habitat for populations of Western burrowing owls and have decades of experience effectively managing their operations to avoid or reduce impacts on the species, consistent with its longstanding status as a Species of Special Concern (SSC), guidance from the California Department of Fish and Game (Department), and mitigation for impacts on SSCs under the California Environmental Quality Act (CEQA).

A listing petition must provide scientific information regarding the species' population trend, range, distribution, abundance, life history, kind of habitat necessary for survival, factors affecting the ability to survive and reproduce, the degree and immediacy of the threat, the impact of existing management efforts, suggestions for future management, the availability and sources of information, and a detailed distribution map. Fish & Game Code Section § 207.3; 14 Cal. Code Regs. § 670.1(e). When determining whether or not there is sufficient scientific information for a reasonable person to conclude that a listing may be warranted (i.e., "candidate" status), the Commission must make "a substantive determination [whether] a species is a candidate entitled to protection similar to that afforded endangered and threatened species" while a full evaluation is pending. *Natural Resources Defense Council v. Fish & Game Commission* (1994) 28 Cal.App.4<sup>th</sup> 1104, 1120 (NRDC). This process requires "taking of evidence for and against listing in a public quasi-adjudicatory setting, a weighing of that evidence, and a Commission discretion to determine essentially a question of fact based on that evidence. This process, in other words, contemplates a meaningful opportunity to present evidence contrary to the petition and a meaningful consideration of that evidence." *Id.* at 1126. The Commission must consider the written and oral comments received together with the listing petition and the Department's evaluation. Fish & Game Code § 2074.2(e); *NRDC* at 113-119; *Center for Biological Diversity v. Fish & Game Commission* (2008) 166 Cal.App.4<sup>th</sup> 597, 609-610, 613.

While candidacy determinations under CESA are based on science, not economics (*NRDC* at 1117, fn. 11), WSPA is concerned that listing the Western burrowing owl could impose significant restrictions, regulatory delays and compliance costs with substantial consequences for land use and development activities, including but not limited to oil and gas development by WSPA members. Imposing such consequences on regions such as Kern County, where energy and agricultural projects are vital to the local economy, is not justified by the available scientific information showing the species' regional population stability and adaptability to human-altered environments, together with the effectiveness of management strategies other than listing as discussed below.

In December 2003, in response to a previous petition, the Commission determined that listing the burrowing owl as endangered or threatened was not warranted. WSPA believes that the Commission's previous determination remains accurate and disagrees with the conclusion in the Department's *Petition Evaluation for Western Burrowing Owl (Athene cunicularia hypugaea)* dated August 2024 (Petition Evaluation) that there is now sufficient scientific information to indicate that listing may be warranted.

### **Failure to consider "other relevant information" (Fish & Game Code 2073.5(a))**

As an initial matter, the Petition Evaluation (p. 18) indicates that the Department limited its review to information in the Petition, without considering other relevant information in its possession: "The Petition cites an extensive list of sources on pages 170–220. . . . The Department referenced *no additional literature* when developing this Petition Evaluation. . . . [T]he Department has evaluated the Petition *on its face and determined that, based upon the information contained in the Petition*, there is sufficient scientific information to indicate that one or more petitioned action(s) to list the western burrowing owl as threatened or endangered may be warranted. . . ." (emphases added).

Fish and Game Code section 2073.5(a) requires the Department to report its listing recommendation to the Commission "[b]ased upon the information contained in the petition"; however, in doing so, the Department must "evaluate the petition on its face *and in relation to other relevant information the department possesses or receives*...." *Id.* (emphasis added). While the Petition Evaluation (p. 18) notes that no information relating to the Petition was received during the evaluation, the Department cannot credibly claim to possess no "other relevant information" and "no additional literature" regarding the Western burrowing owl. The Department has listed the burrowing owl as an SSC since 1978. The Department regularly updates its SSC assessments with new information to determine which species qualify as SSCs, and includes threat assessments for their habitat in the State Wildlife Action Plan.<sup>1</sup> The Department issued *Burrowing Owl Survey Protocol and Mitigation Guidelines* in 1993 and evaluated mitigation under the guidelines in a staff report that cites numerous studies from the scientific literature. *Staff Report on Burrowing Owl Mitigation* (2012), pp. 15-19. The Department also supports research on burrowing owls, such as the 2010 paper by R. L. Wilkerson and R. B. Siegel which is cited extensively in the Petition and Petition Evaluation.<sup>2</sup> It is unlikely that this is the only such study that the Department has supported.<sup>3</sup> In addition, the

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<sup>1</sup> See <https://wildlife.ca.gov/Conservation/SSC>

<sup>2</sup> R.L. Wilkerson and R.B. Siegel (2010) Assessing changes in the distribution and abundance of burrowing owls in California, 1993–2007. *Bird Populations* 10:1-36; see acknowledgment of Department funding and staff "supporting this project in numerous ways", p. 33.

<sup>3</sup> The Department also supported a follow-up study of populations in the western Mojave and Sonoran desert regions. R.L. Wilkerson and R.B. Siegel (2011) Distribution and Abundance of Western Burrowing Owls (*Athene cunicularia hypugaea*) in Southeastern California. *Southwestern Naturalist* 56:378–384; see acknowledgments on p. 384. The 2011 study is cited in the Petition, but is not referenced in the Petition Evaluation, which erroneously attributes information on the desert populations from the 2011 study to "Wilkerson and Siegel 2010." Petition Evaluation, p. 10.

Department receives, reviews and comments on CEQA documents for projects throughout the state, which examine substantial adverse effects, either directly or through habitat modifications, on special status species including SSCs. CEQA Guidelines Appendix G, Section IV(a).

If the Department limited its consideration solely to information in the Petition on its face and failed to evaluate the Petition in relation to other relevant information in its possession as required by CESA, the Commission should reject the Petition Evaluation and direct the Department to prepare an evaluation that complies with Fish and Game Code Section 2073.5(a).<sup>4</sup>

### **Listings for potentially distinct populations**

The Petition claims that one or more of five separate listing decisions is warranted: (i) listing the San Francisco Bay Area, Central-Western California, and Southwestern California populations of the burrowing owl as endangered, (ii) listing the entire statewide population as threatened; (iii) listing the Central Valley and Southern Desert Range populations as threatened; (iv) if listing the entire Central Valley population is not warranted, listing one or more distinct populations within it as threatened; and/or (v) if listing the entire Southern Desert Range population is not warranted, listing one or more distinct populations within it as threatened. The Petition Evaluation concludes that there is sufficient scientific information to indicate that one or more of the petitioned actions may be warranted.

As the Petition and Petition Evaluation acknowledge, Western burrowing owl populations show significant regional variability. While there is evidence of declines in some areas, others maintain large relatively stable or even increasing populations. This regional variability demonstrates that, at the least, available scientific information does not support one of the Petition's proposals, listing the entire statewide population as threatened.<sup>5</sup> Instead, the evidence supports regionally distinct approaches to management of the species.

WSPA does not object to a threatened or endangered listing for the San Francisco Bay Area population of Western burrowing owls. This population is particularly vulnerable due to extensive urbanization, habitat fragmentation, and loss of genetic diversity due to the small number of remaining breeding pairs. However, regarding other populations, or the entire population statewide, the available information does not show that listing may be warranted.

### **Reliance on statistically insignificant population trends**

There are substantial flaws and gaps in the data on burrowing owl populations relied on in the Petition Evaluation. In particular, the Petition Evaluation fails to disclose that the Wilkerson and Siegel (2010) study – the primary source on statewide and regional population trends – did not demonstrate significant changes since prior surveys in 1991-1993.

The Petition Evaluation (pp. 5, 10-13) discusses the findings of the 2010 study, which attempted to extrapolate population trends from surveys at only two points in time, 1991-1993 and 2006-

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<sup>4</sup> See, for example, the Department's *Evaluation of the Petition from the Center for Biological Diversity to List the Tumbler Legless Lizard (*Anniella alexanderae*) as Threatened or Endangered Under the California Endangered Species Act* (March 25, 2022), p. 20, which complies with Fish & Game Code Section 2073.5(a): "The Department utilized some additional information and sources when developing this Petition Evaluation. These sources include Crother (2017), Loss (2013), CAS (2022), GreenInfo Network (2022), MCV (2022), MVZ (2022), and additional data found in the Department's CNDDB."

<sup>5</sup> See Wilkerson and Siegel 2010 and 2011 studies, including information on the Imperial Valley and the western Mojave and Sonoran desert populations.

2007. Populations of burrowing owls fluctuate from year to year based on the amount of rainfall and availability of resources, which undercuts the reliability of extrapolation from only two time periods. Factors such as time of day, weather conditions, and the stage of the nesting cycle can significantly influence burrowing owl detection rates.<sup>6</sup> In addition, the 2010 study authors discussed likely systematic sources of error in their survey methodology.<sup>7</sup> Burrowing owls are difficult to detect even for experienced biologists, while the study relied largely on local volunteer observers. Although the vast majority of breeding pairs are on private land, in many areas owls could not be reliably detected or surveys could not be performed, due to lack of access to private property and limited or no road access.

Moreover, the Petition Evaluation disregards the fact that, although the 2010 study report population declines in some regions and healthy populations in other regions, nearly all of the observed population declines were *not statistically significant*, i.e., statistically indistinguishable from random variation. The Northern Central Valley was the only region for which the 2006-2007 population estimate differed significantly from the 1991-1993 estimate.<sup>8</sup> For other populations where the study reported a lower estimate of breeding pairs in 2006-2007, the authors emphasized that “the difference was not statistically significant. The major patterns of Burrowing Owl occurrence across California appeared to be relatively unchanged since 1993, although non-significant declines were apparent in numerous regions.”<sup>9</sup> In particular, the study reported that there was “not a statistically significant difference” in the number of pairs estimated in the Southern Central Valley, or a statistically significant decline in the Bakersfield area in the Southern Central Valley region.<sup>10</sup> In addition, surveys of the western Mojave and Sonoran desert regions found previously unreported large populations which, the 2011 study concluded “comprise a significant portion of the population of burrowing owls in California.”<sup>11</sup>

The Petition Evaluation is misleading in failing to acknowledge that observed declines since the previous surveys were not statistically significant. The only mention of significance of the results in the Petition Evaluation is for the Imperial Valley population, the largest population of burrowing owls identified in the 2010 study. In this region, the Petition Evaluation (p. 13) states that “the most recent population estimate is significantly less than the three prior estimates.” That assertion is not supported by the 2010 study, which reported that the population decline in Imperial Valley was statistically “non-significant”, with a reduction by “163 pairs, but the relatively high absolute numbers make this unlikely to be a meaningful change.”<sup>12</sup>

In the absence of significant population changes from 1991-1993 to 2006-2007, together with the surveys’ methodological limitations, the results do not support the contention that conditions have fundamentally changed since the Commission rejected the previous listing petition in 2003.

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<sup>6</sup> C. Conway, V. Garcia, M. Smith, & K. Hughes, K. (2008). Factors affecting detection of burrowing owl nests during standardized surveys. *Journal of Wildlife Management*, 72(3), 688-696, available at <https://pubs.usgs.gov/publication/70033494>.

<sup>7</sup> Wilkerson and Siegel (2010), pp. 3-4, 30.

<sup>8</sup> *Id.*, p. 30.

<sup>9</sup> *Id.*, p. 1; see also p. 27 for “non-significant” reduction in the statewide population.

<sup>10</sup> *Id.*, pp. 15, 31.

<sup>11</sup> Wilkerson and Siegel (2011), p. 378.

<sup>12</sup> Wilkerson and Siegel (2010), pp. 24, 27.

### **Additional data gaps**

The petition lacks the information needed to reliably estimate the current breeding pair status of the Western burrowing owl in California, especially in the Southern Central Valley region. The Petition and Petition Evaluation reference other sources of information including the Department's Natural Diversity Database (CNDDDB) and the Cornell University eBird project database. Other sources of information are mentioned in the Petition, including published literature, local surveys, museum collections, Breeding Bird Survey data, personal communications and anecdotes. None of these sources is comprehensive or complete; all of them rely on voluntary contribution of observations. There are no comprehensive population studies for the Western burrowing owl more recent than the Wilkerson and Siegel (2010) study which reported insignificant declines.

Wilkerson and Siegel reported that breeding pairs of burrowing owls were found in a range of habitat types, including idle or fallow fields, field crops and pastures and other human-modified areas such as irrigation canal banks, as well as natural grassland. The "vast majority" of breeding burrowing owls occur on private lands, which is relevant to the consideration of existing management efforts.<sup>13</sup> However, reliance on voluntary observations reported to the CNDDDB and similar sources is especially problematic for occurrences on private property. In oilfields and agricultural lands, sensitive species are routinely observed by biologists, as well as crews and other workers, in the field during travel and work that are not documented and submitted to a database. Private entities such as oil and gas companies, farmers, ranchers, developers, water districts and others are not required to report to CNDDDB. eBird observations are limited to areas where the public has access, including areas where observers have trespassed. As a result, the databases contain significant gaps in coverage of the large majority of burrowing owl habitat that is located on private lands.

Additional burrowing owl information is available that was not reviewed or included in the Petition Evaluation and should be considered. In addition to published data in CNDDDB, unpublished data exists in the Department's Biogeographic Information and Observation System (BIOS) including many records for burrowing owl. For example, from a limited review, we found that in the Southern Central region there were approximately 94 completed CNDDDB forms reporting sightings of burrowing owls, of which approximately 83 forms were submitted after 2008, i.e., after the most recent statewide estimates by Wilkerson and Siegel (2010) in 2006-2007. See Attachment 1, Table of CNDDDB BIOS burrowing owl records as of August 30, 2024. There are likely more burrowing owl observations in the dataset that were not revealed by limited review. The Petition Evaluation did not consider this available information.<sup>14</sup>

### **Utilization of human-altered habitat including oilfields**

There are millions of acres of suitable burrowing owl habitat in the Southern Central Valley Region consisting of open contiguous natural lands, conservation lands, ruderal areas, canal systems, water banking lands, active and fallow agricultural lands, grazing pastures, vacant lots, golf courses, and areas of low- to high-density oil and gas development. WSPA members have observed from dozens to hundreds of owl sightings or burrows in Central Valley oilfields in the past decade. Within oilfields, burrowing owls exhibit a high tolerance of human disturbance and have been observed nesting in high traffic areas, parking lots, in facilities, under pipelines and electrical conduits. Owls utilize pipe racks, poles, fences and pumping units as perches, and occupy banks around drain tanks, berms, road cuts and terraced areas. Even in high-density

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<sup>13</sup> *Id.*, p. 27.

<sup>14</sup> By contrast, the petition evaluation for the Temblor legless lizard did consider this source of available information. See footnote 4, above.

developed oil and gas fields, burrowing owls do not have trouble finding prey, and they nest and successfully fledge young. Although the Petition emphasizes the owls' dependence on burrows constructed by California ground squirrels, they commonly use dens of other animals such as kit fox, coyote and badgers, and benefit from such nesting opportunities throughout oilfields where California ground squirrels are absent. In addition, restrictions on incompatible development in oilfields protects owl habitat from the urbanization pressures affecting other areas, as well as supporting connectivity between habitats which can help maintain genetic diversity.

The Petition Evaluation (p. 13) identifies habitat loss from agriculture, urban and suburban development and industrial energy development as primary threats to the species. See also the Petition (p. 103) on habitat loss attributed to oil and gas development (though the Petition is more focused on impacts from renewable energy). However, the Western burrowing owl has demonstrated adaptability to human-altered habitats including agricultural fields, urban areas and oilfields. Research has shown that these owls can thrive in environments with high human activity, provided that there are sufficient burrowing opportunities and prey availability.<sup>15</sup> This adaptability suggests that the characterization of the threat from development, including industrial energy, is overstated.

The amount of habitat available to burrowing owls will continue to increase with implementation of the Sustainable Groundwater Management Act (SGMA). According to estimates from the Public Policy Institute of California, an independent research institution, over half a million agricultural acres in the San Joaquin Valley may need to be fallowed by 2040 to meet SGMA goals.<sup>16</sup> Some estimates of the acreage to be fallowed range from 500,000 to over one million acres. This trend will substantially increase available nesting areas as burrowing owl use fallow fields, which turn to grassland shortly after becoming fallow. The Petition Evaluation does not mention SGMA.

### **Management efforts on private lands**

The Petition Evaluation (pp. 15-17) recites the Petition's criticisms of existing regulatory mechanisms, such as Habitat Conservation Plans (HCPs) and Natural Community Conservation Plans (NCCPs). However, the Petition Evaluation fails to consider other relevant information regarding existing management efforts. Fish & Game Code § 2072.3, 2073.5(a).

The existing protections for the Western burrowing owl are robust and effective. The species is designated by the Department as an SSC, by the Bureau of Land Management as a sensitive species, and by the U.S. Fish and Wildlife Service as a bird of conservation concern, and is a sensitive species subject to the impact analysis and mitigation requirements of CEQA. The burrowing owl is also protected by Fish & Game Code sections 3503, 3503.5 and 3513 prohibiting take of migratory birds and raptors, and under the Migratory Bird Treaty Act (MBTA). These designations ensure comprehensive habitat conservation, limit human disturbance, enforce prohibitions against harm or harassment of the species, and constrain or require mitigation for development projects that could affect the species. These existing legal frameworks safeguard critical nesting sites and food resources, and provide sufficient protective

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<sup>15</sup> E. Chipman, N. McIntyre, R. Strauss, M. Wallace, J. Ray, C. Boal (2004) Effects of Human Land Use on Western Burrowing Owl Foraging and Activity Budgets. *Journal of Raptor Research* 42:87-98; available at <https://bioone.org/journals/journal-of-raptor-research/volume-42/issue-2/JRR-07-20.1/Effects-of-Human-Land-Use-on-Western-Burrowing-Owl-Foraging/10.3356/JRR-07-20.1.full#:~:text=More%20foraging%20attempts%20occurred%20in,were%20observed%20at%20rural%20sites.>

<sup>16</sup> <https://www.ppica.org/publication/managing-water-and-farmland-transitions-in-the-san-joaquin-valley/>.

measures to avoid, reduce or compensate for threats and ensure the species' long-term survival.

As reported by Wilkerson and Siegel, the majority of burrowing owl habitat is on private lands, and conservation of the species depends on participation by private landowners. This includes land owned by oil and gas companies, which have voluntarily implemented measures for the protection of burrowing owls for decades. In Central Valley oil and gas fields, operators generally comply with the Department's recommendations in its *Burrowing Owl Survey Protocol and Mitigation Guidelines* issued in 1993 and updated in 2012. Similarly, CEQA documents prepared by lead agencies for projects in oilfields must provide mitigation for significant impacts on burrowing owls (see CEQA Guidelines Appendix G, Section IV(a)) and generally utilize the Department's avoidance and mitigation measures to comply with CEQA mitigation requirements. Habitat Conservation Plans (HCPs) and other localized management efforts have been effective in protecting burrowing owl populations in specific areas. These efforts include the protection of key habitats, installation of artificial burrows, and adaptive management strategies tailored to local ecological conditions.

Examples of oil company programs and management measures that protect Western burrowing owls on their property are provided in Attachment 2, which describes protective management measures both for burrowing owls specifically and for sensitive species in general, including burrowing owls; and Attachment 3, which describes an 8,000 acre conservation area established by one oil company to mitigate for loss of habitat for San Joaquin Kit fox, San Joaquin antelope squirrel and other designated species, which also serves to protect habitat for sympatric species including the Western Burrowing owl.

In addition to management efforts on private lands, the Bureau of Land Management (BLM) has adopted Resource Management Plans which governs federal land management for the benefit of the public and wildlife. The BLM Bakersfield Field Office manages their properties to limit disturbance to maximum thresholds of 10% (64 acres per 640-acre Section) for "Red Zone" reserve areas with highest quality habitats, and 25% (160 acres per Section) for "Green Zone" habitat corridors.<sup>17</sup> For disturbance to habitat on these lands, there is a mitigation obligation to set aside in perpetuity lands of equal or greater value at a ratio of 3:1 or 2:1 respectively.

As an indicator of the effectiveness of conservation measures for both public and private lands, Attachment 4 presents a Regional Conserved Lands Map, which illustrates the extent of regional conservation lands within the Southern San Joaquin Valley region. These large blocks of protected habitat support the recovery goals for a number of important species, and also provide habitat for sympatric species including the Western burrowing owl. The mapped lands are owned by public agencies, conservation organizations, and private landowners including oil and gas companies. This map has also been used as a tool to identify appropriate lands for acquisition for conservation, where additional parcels would be particularly helpful in preserving or enhancing connectivity between existing protected areas.

The Commission must also consider the Petition's suggestions for future management in relation to other relevant information the department possesses or receives. Fish & Game Code § 2072.3, 2073.5(a). While the Petition offers future management suggestions in conjunction with the proposed listing, alternative conservation strategies can be implemented without listing

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<sup>17</sup> See BLM Bakersfield Field Office, Record of Decision and Approved Resource Management Plan (2014) [https://eplanning.blm.gov/public\\_projects/lup/70273/167087/203552/Bakersfield\\_ROD-ARMP\\_508.pdf](https://eplanning.blm.gov/public_projects/lup/70273/167087/203552/Bakersfield_ROD-ARMP_508.pdf), Appendix 3, Best Management Practices/Standard Operating Procedures, p. 270, and Appendix 4, Biological Resources Conservation Strategy, p. 228.

the species under CESA. These could include habitat restoration, targeted conservation and monitoring efforts, and/or incentive-based programs for private landowners.

For example, the **San Diego Management and Monitoring Program** has implemented artificial burrows and habitat enhancement strategies in San Diego County, which have proven to be effective in providing suitable habitats for displaced owls. These measures, part of a coordinated species recovery strategy, aim to increase population stability through ongoing maintenance of artificial burrows and habitat improvement efforts.<sup>18</sup> The success of such targeted conservation actions, including habitat protection and artificial nesting opportunities tailored to local ecological conditions, demonstrates effective alternatives for promoting burrowing owl population recovery without requiring CESA listing.

Based on the information presented in these comments, WSPA requests that the Commission reject the Petition and decline to designate the species as a candidate for listing.

Sincerely,



Catherine H. Reheis-Boyd  
President and CEO

Attachment 1: Table of CNDBB BIOS burrowing owl records as of August 30, 2024

Attachment 2: Examples of protective management measures for burrowing owls on private lands

Attachment 3: Elk Hills Natural Conservation Area

Attachment 4: Regional Conserved Lands Map

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<sup>18</sup> San Diego Management and Monitoring Program. Burrowing Owl Habitat Conservation and Management Plan. See [https://sdmmp.com/view\\_article.php?cid=SDMMP\\_CID\\_212\\_5a569e38e1c7e](https://sdmmp.com/view_article.php?cid=SDMMP_CID_212_5a569e38e1c7e).